

WEEK 6

End of East India Company's Rule

1858: Transition to British Crown Rule

- **August 2, 1858:** British Parliament passed a law transferring all rights of the East India Company to the British government.
- **Post-1858:** India was governed directly by the British Crown, with Queen Victoria as "Empress of India."
- **Significance:** Marked the end of indirect rule by the East India Company and the beginning of direct British governance.

Indian Council Act of 1861

- **First Legislation by British Government:** This was the first law enacted by the British Parliament for India, replacing laws made by the East India Company.
- **Viceroy's Role:**
 - Lord Canning became the first Viceroy, assuming greater authority.
 - The Executive Council of the Viceroy was expanded from 6 to 12 members.
- **Nominated Members:**
 - Half of the Council members were non-officials, including nominated Indians.
 - This was aimed at improving communication between the British and Indians, addressing grievances highlighted by Sir Syed Ahmed Khan after the 1857 mutiny.
- **Limited Legislative Powers:**
 - The Council had very restricted powers, primarily advisory.
 - Important subjects, such as foreign affairs (dealing with princely states), remained directly under the Viceroy's control.

Representation and Communication

- **Nominated Representation:**
 - Introduced the idea of Indian representation through nomination, not election, ensuring that only loyal Indians were included.

- This was a response to the need for better understanding of Indian perspectives in governance.

Key Takeaways

- **Foundation for Future Reforms:** The Act laid the groundwork for gradual Indian involvement in governance, though it maintained British control.
- **Communication Bridge:** It aimed to establish a channel for Indian voices in the administrative process, marking the beginning of a more inclusive approach, albeit limited.

Indian Council Act of 1892

Introduction:

- Enacted 31 years after the Indian Council Act of 1861, reflecting administrative changes and evolving governance needs.

Key Features:

- **Increased Membership:**
 - **Central Legislative Council:** Expanded from 10 to 16 members.
 - **Provincial Legislative Councils:** Membership increased variably:
 - **Madras & Bombay:** 8 to 12 members.
 - **Bengal:** 12 to 20 members.
- **Limited Legislative Powers:**
 - Some improvement from the 1861 Act; members could ask questions and raise issues.
 - Ultimate authority still rested with the Viceroy or Governor-General.
- **Introduction of Elective Principles:**
 - Limited introduction of elections through special interests (e.g., chambers of commerce, university senates).
 - Only specific groups could elect representatives, maintaining British control over appointments.
- **Control by British Government:**
 - The Governor-General and British government retained the power to appoint council members, limiting genuine representation.

Analysis:

- The 1892 Act represented a marginal improvement over the 1861 Act, showing a gradual development in Indian political representation while still ensuring British dominance in governance.

Government of India Act, 1909 (Minto-Morley Reforms)

Introduction:

- This Act marked the third significant constitutional development in India.
- Enacted amid rising political demands from Indian political parties, notably the Indian National Congress and the Muslim League.

Key Features:

- **Increased Representation:**
 - **Legislative Councils:**
 - **Central Level:** Expanded to 60 members, still maintaining a British official majority.
 - **Provincial Level:** Sizes varied; for example:
 - Bombay, Madras, Bengal, and Uttar Pradesh: 50 members.
 - Non-officials gained a majority at the provincial level, though many were nominated rather than elected.
- **Enhanced Powers of Councils:**
 - Councils could discuss the budget but could not reject it outright.
 - Members could ask questions and present non-binding resolutions on public issues.
 - This allowed Indians to raise matters of importance, although the British government retained the power to ignore these resolutions.
- **Formation of Executive Councils:**
 - Established in provinces like Bombay, Madras, and Bengal, allowing for more local governance.
- **Expanded Electorate:**
 - Increased voting rights, although still limited to specific groups, including:
 - Members of university senates, district boards, municipal committees, zamindars, and chambers of commerce.
- **Separate Electorate for Muslims:**
 - Introduced the principle that Muslim representatives would be elected solely by Muslim voters.
 - This principle emerged from the Simla Deputation in 1906 and was formally incorporated into the Act, becoming a lasting feature of Indian political representation until 1947.

Analysis:

- The Government of India Act, 1909, represented a gradual move towards increased Indian participation in governance.
- While it expanded representation and introduced limited electoral processes, significant power remained with the British government.
- The introduction of the Separate Electorate for Muslims was a crucial development, solidifying communal representation in Indian politics

Government of India Act, 1919 (Montagu-Chelmsford Reforms)

Introduction:

- Enacted in response to intensified political activity in India, including demands for self-government.
- The backdrop included the First World War and the 1916 Lucknow Pact between the Indian National Congress and the Muslim League, advocating for constitutional reforms.

Key Developments Leading to the Act:

- **Announcement of 1917:** British government promised gradual Indian involvement in government and responsible governance.
- **Montague-Chelmsford Report (1918):** Based on consultations with Indian leaders, this report laid the foundation for the 1919 Act.

Salient Features:

- **Bicameral Legislature:**
 - **Central Legislature:**
 - Composed of two houses:
 - **Council of State:** 60 members (34 elected, 26 nominated).
 - **Legislative Assembly:** 145 members (105 elected, 40 nominated).
 - Elected members held a majority in both houses.
- **Limited Franchise:**
 - Direct elections introduced with limited voting rights based on property and tax criteria, not universal suffrage.
- **Separate Electorate:**
 - Continued the principle of Separate Electorate, allowing Muslims to elect their own representatives in both central and provincial legislatures.
- **Legislative Powers:**

- Slightly increased law-making powers, but many areas (defense, foreign policy, budget) remained under British control.
- The Governor-General (GG) could override decisions made by the legislature.
- **Provincial Assemblies:**
 - Varied sizes; similar to the central assembly, powers were limited.
 - GG maintained significant authority, with an Executive Council primarily composed of nominated members.
- **Diarchy System in Provinces:**
 - Introduced a system dividing powers into:
 - **Reserved Subjects:** Controlled by officials accountable to the GG (e.g., judiciary, finance).
 - **Transferred Subjects:** Managed by ministers accountable to the provincial legislature (e.g., local government, education).
 - This system aimed to distribute responsibilities but often led to administrative conflicts.
- **Limited Responsible Government:**
 - Aimed to provide a semblance of self-governance, but the GG retained overriding powers, complicating the relationship between elected and nominated members.

Analysis:

- The Government of India Act, 1919, marked a significant step towards Indian representation but maintained substantial British control over governance.
- The introduction of the Diarchy system reflected British reluctance to grant full authority to Indians, leading to ongoing tensions and challenges in administration.

Government of India Act, 1935: Key Points

Overview:

- The Government of India Act, 1935, was a major legislative effort by the British Government in India.
- It was developed through the Simon Commission, Round Table Conferences, and the White Paper (1933).
- The Act was passed in July 1935 and received Royal assent in August 1935.

Salient Features:

1. Federalism:

- Introduced federalism for the first time in India.
- Established a federation with:
 - 11 Governor Provinces
 - 6 Chief Commissioner Provinces
 - Princely states willing to join.

2. Distribution of Powers:

- Powers divided into three lists:
 - **Federal List:** Defense, Postal services, External affairs, Coinage, Communication.
 - **Provincial List:** Education, Police, Local self-government, Justice, Agriculture, Public service, Fisheries, Forests.
 - **Concurrent List:** Criminal law, Civil marriage, Divorce, Registration, Bankruptcy, Factories, Succession.

3. Central Legislature:

- **Two Houses:**
 - **Council of State:** 260 members (156 from British provinces, 104 from Indian States); elected indirectly with communal representation.
 - **Federal Assembly:** 375 members (250 from British provinces, 125 from Indian States); members elected by provincial legislatures with separate electorates.

4. Legislative Powers:

- Limited powers for the legislature:
 - 80% of the budget was non-votable.
 - Could legislate on two lists but bills could be vetoed by the Governor-General (GG).

5. Governor-General's Powers:

- Powerful executive role with:
 - Ability to act on advice, independent judgment, and discretion.
 - Emergency powers, ordinance-making, and direct rule over provinces.

Provincial Governments:

- Governors had powers similar to the GG.

- Diarchy was abolished in provinces, leading to responsible government.
- Legislation varied:
 - Bicameral legislatures in six provinces and unicameral in five.
- Franchise extended but limited based on:
 - Land revenue (Rs. 5), non-transferable property (Rs. 60), and primary education.

6. **Judiciary:**

- Established Federal Court and High Courts.

7. **Geographical Changes:**

- Burma was separated from India.
- Sind was separated from Bombay.

Comments:

- The federal component was not implemented; only the provincial aspect was introduced in 1937.
- Provincial autonomy was provided, with elected governments formed in provinces.
- A strong central authority was maintained.
- Indian government had no control over defense; Indian legislature could not amend the Act.
- The GG had overriding and discretionary powers, while provincial governors had special powers.

Conclusion:

- The Government of India Act, 1935, set the stage for provincial autonomy and introduced a federal structure, although many limitations remained, particularly regarding central power and defense.

Constitutional Development in British India (1857-1947)

1. Government of India Act of 1858

- Marked the end of **East India Company** rule and transferred power to the **British Crown**.
- Established the **Secretary of State for India** who controlled Indian administration through the **Viceroy**.
- The **Council of India**, with 15 members, served as an advisory body.
- The **Governor-General** was designated as the **Viceroy**; **Lord Canning** was the first Viceroy.

2. Indian Council Act of 1861

- Introduced non-official Indian members to the **Legislative Council** of the Viceroy for the first time.
- Established legislative councils at both provincial and central levels.
- Restored legislative powers in **Bombay** and **Madras** provinces.
- New legislative councils were created in **Punjab**, **NWFP**, and **Bengal**.

3. Indian Council Act of 1892

- Expanded the size of the Legislative Council.
- Increased powers for the council, allowing deliberation on the budget and questioning the executive.
- Introduced **indirect elections** and the principle of representation.

4. Indian Councils Act, 1909 (Morley-Minto Reforms)

- Introduced **direct elections** for the Legislative Councils for the first time.
- Renamed the **Central Legislative Council** as the **Imperial Legislative Council**.
- Established **communal representation** with separate electorates for Muslims.
- Indians were appointed to the **Viceroy's Executive Council** for the first time; **Satyendra Sinha** was the law member.

5. Government of India Act, 1919 (Montagu-Chelmsford Reforms)

- Introduced **bicameralism** at both central and provincial levels.
- Separated **provincial and central subjects** and established **dyarchy** (dual governance).
- The **reserved list** (controlled by the Viceroy) included defense and foreign affairs, while the **transferred list** (managed by ministers) included education and health.
- Established the **Public Service Commission** in India.
- Extended communal representation to **Christians**, **Anglo-Indians**, and **Sikhs**.
- Limited franchise based on property and income criteria.

6. Government of India Act, 1935

- This was the most comprehensive constitutional measure before independence, resulting from multiple **Round Table Conferences** and the **Simon Commission** report.
- Introduced bicameral legislatures in six provinces.
- Divided powers into **Federal List**, **Provincial List**, and **Concurrent List**.

- Abolished dyarchy at the provincial level, though it remained at the center.
- Established a **Federal Court** and the **Reserve Bank of India (RBI)**.
- Proposed an **All India Federation** with provinces and princely states.

7. Cripps Mission (1942)

- Led by **Sir Stafford Cripps** to negotiate with Indian leaders.
- Proposed **Dominion status** for India after WWII.
- Suggested an elected body to draft the constitution and included Indian states in the process.
- The proposals were rejected by major Indian political parties.

8. Cabinet Mission (1946)

- Proposed a **Union of India** comprising British provinces and Indian states.
- Suggested forming a **Constituent Assembly** with 389 members.
- Planned for an interim government comprising representatives from major political parties.
- Until a new constitution was enacted, the Government of India Act, 1935, would govern India.

9. Mountbatten Plan (Indian Independence Act, 1947)

- Led to the partition of British India into **India** and **Pakistan** effective from **15th August 1947**.
- Conferred complete legislative authority to the **Constituent Assembly**.
- Established governments for both new nations.

Conclusion

- The period from 1857 to 1947 saw significant constitutional developments in British India, marked by various acts that progressively increased Indian representation and governance, ultimately leading to the establishment of independent states in 1947.

. WEEK 7

Constitutional Dilemma of Pakistan (1947-1956)

Introduction

- Upon its creation in 1947, Pakistan operated under an interim constitution combining the **Government of India Act, 1935**, and the **Indian Independence Act, 1947**.

- Members of the **Central Legislative Assembly** who won the 1945-46 elections took their oaths as members of the new legislative assembly.
 - The primary task of the **Constituent Assembly** was to draft a new constitution, which ultimately took nine years to complete, with the first constitution being enacted in **1956**.
 - Pakistan faced significant challenges during this period, including:
 - The early death of **Quaid-e-Azam Muhammad Ali Jinnah** in 1948.
 - The assassination of **Liaqat Ali Khan**, the first Prime Minister.
 - A massive influx of refugees.
 - Distrust between **East** and **West Pakistan**.
 - Ambiguities surrounding the role of **Islam** in governance.
 - Bureaucratic interference hindered political stability.
 - This instability resulted in **seven prime ministers, two Governor-Generals, and two presidents** over nine years, disrupting governance.
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Objectives Resolution (12 March 1949)

- The **Objectives Resolution** was a foundational document for future constitutions.
- Proposed by **Liaqat Ali Khan**, it outlined the governance system for Pakistan and was considered a pivotal moment in the country's history.

Key Principles of the Objectives Resolution:

1. Sovereignty of Allah:

- Sovereignty belongs to **Allah**, emphasizing that human authority is derived from divine will.

2. Islamic Democracy:

- Emphasizes that **Islamic principles** as outlined in the Quran and Sunnah should guide governance to achieve social justice and equality.

3. Rights and Equality:

- Advocates for **freedom, social justice, tolerance**, and equality for all citizens, including protection of minority rights.
- Ensures that no one can undermine the rights of others based on wealth or status.

4. Religious Freedom:

- Guarantees rights for all minorities, allowing them to practice their religions freely and contribute to national development.

5. **Democracy and Fundamental Rights:**

- The resolution establishes fundamental rights for all citizens, enabling participation in public and private affairs.

6. **Federal Structure:**

- Recognizes the need for a federation that maintains provincial autonomy, which influenced the 1956 constitution.

7. **Judicial Independence:**

- Stresses the importance of an independent judiciary to ensure timely and impartial justice.

Conclusion

- The period between 1947 and 1956 was marked by significant political challenges and a struggle to establish a stable constitutional framework in Pakistan.
- The **Objectives Resolution** laid the groundwork for Pakistan's future constitutions by defining key principles related to governance, rights, and the role of Islam, which remain influential in the country's legal and political landscape.

Importance of the Objectives Resolution

The **Objectives Resolution**, passed on March 12, 1949, is a cornerstone of Pakistan's constitutional history. It established foundational principles for future constitutions and aimed to implement an Islamic way of life within a democratic framework. Here are its key aspects:

- **Framework for Constitution:** The resolution provided guidelines that helped Pakistani politicians draft a constitution reflecting the aspirations of the Muslim population, who had faced marginalization during colonial rule.
- **Integration of Islam and Politics:** It linked Islamic principles with governance, asserting that politics could not be divorced from religion. The resolution aimed to create a balance between Islamic values and modern democratic principles.
- **Human Rights:** It guaranteed basic human rights for all citizens, promoting equality regardless of caste, color, or creed. This commitment established the ideological basis for Pakistan's legal framework.
- **Social and Religious Harmony:** The resolution emphasized individual religious freedoms while advocating for a society that respects diverse beliefs, fostering an enlightened community.
- **Foundation for Future Constitutions:** Although not a permanent constitution, the Objectives Resolution served as the preamble for subsequent constitutions, influencing their design and objectives.

- **Challenges in Constitution-Making:** While it outlined the goals for governance, the actual drafting of the constitution faced numerous challenges, including federal issues, language disputes, and differing interpretations of Islamic democracy.

Stumbling Blocks in Constitution-Making

The process of drafting a constitution from independence in 1947 until 1956 was fraught with difficulties:

1. **Federal Issues:** Although the Objectives Resolution endorsed a federal structure, disagreements over power distribution between central and provincial governments created tension, particularly between East and West Pakistan.
2. **Form of Government:** A parliamentary system was preferred, but the political culture required for it was lacking. This led to debates about the viability of either a parliamentary or presidential system.
3. **Linguistic Tensions:** The initial decision to establish Urdu as the sole official language faced backlash from East Pakistan, which pushed for Bengali. This linguistic conflict complicated national unity and representation.
4. **Political Instability:** The actions of politicians and autocratic tendencies within the government hindered progress. For instance, the dissolution of the first Constituent Assembly in 1954 delayed constitution-making further.
5. **Interpretations of Islamic Democracy:** Divergent views on how Islamic teachings should shape governance led to disputes between conservative religious factions and more secular-oriented political groups.
6. **Representation Issues:** The geographical division of Pakistan presented challenges in ensuring fair representation for both wings of the country, requiring careful consideration in the legislative framework.
7. **Electoral Methods:** The debate over separate versus joint electorates highlighted tensions between secular and religious factions, complicating the establishment of an electoral system that would satisfy all groups.

Conclusion

The Objectives Resolution and the subsequent challenges in constitution-making illustrate the complexities of establishing a new political identity for Pakistan. Despite the difficulties, the resolution laid the groundwork for a constitutional framework that sought to merge Islamic values with democratic governance, reflecting the aspirations of the nation. The eventual adoption of the 1956 constitution marked a significant milestone, moving Pakistan closer to fulfilling its ideological goals.

A Momentary Consensus: The 1956 Constitution of Pakistan

The **1956 Constitution** marked a significant moment in Pakistan's constitutional development, establishing a framework for governance amid the country's diverse cultural and ethnic landscape.

This constitution, composed of 234 articles divided into 13 parts and 6 schedules, was notable for several reasons:

Key Features of the 1956 Constitution

1. **Preamble and Objectives:** The constitution began with a preamble that incorporated the **Objectives Resolution**, asserting that sovereignty belongs to Allah and emphasizing principles of social justice, equality, freedom, and democracy based on Islamic ideology.
2. **Nature of the Constitution:** It was characterized as partly rigid and partly flexible, requiring a two-thirds majority in the National Assembly for amendments. This design balanced the need for stability with the ability to adapt to changing circumstances.
3. **Government Structure:** The constitution established a **parliamentary system** of governance, with the **Prime Minister** as the head of government and a **President** serving as a nominal head of state. The Prime Minister wielded actual executive power, while the President's role was largely ceremonial.
4. **Federalism:** Recognizing Pakistan's cultural and ethnic diversity, the constitution adopted a federal structure. It created a division of powers across three lists:
 - **Federal List:** Powers of the central government (e.g., defense, foreign affairs).
 - **Provincial List:** Powers assigned to provincial governments (e.g., health, education).
 - **Concurrent List:** Shared powers between federal and provincial governments (e.g., civil and criminal law).
5. **Legislative Structure:** The constitution provided for a **unicameral legislature**, the **National Assembly**, which allowed for equal representation from both East and West Pakistan. Each wing sent 150 representatives, with additional seats reserved for women and minorities.
6. **Voting and Elections:** The voting age was set at 21, with universal franchise granted to all eligible citizens. The National Assembly was elected for a five-year term, and leadership positions could be changed through a vote of no confidence.
7. **Economic Institutions:** Provisions for a **National Economic Council** and a **National Finance Commission** were included, ensuring representation from both federal and provincial governments in economic decision-making.
8. **Islamic Provisions:** The constitution declared Pakistan an **Islamic Republic**, stipulating that the President must be a Muslim and that no law could be enacted contrary to the Quran and Sunnah, although enforcement mechanisms were limited.
9. **Language Policy:** The constitution recognized **Urdu and Bengali** as state languages, a step towards addressing linguistic diversity, though tensions surrounding language rights persisted.

Challenges and Limitations

While the 1956 Constitution aimed to address Pakistan's complexities, it faced inherent challenges:

- **Central-Provincial Tensions:** The supremacy of the central government in cases of conflict with provincial authorities led to concerns about provincial autonomy, especially from East Pakistan.
- **Political Instability:** The political landscape was marked by instability, and the constitution was eventually abrogated in 1958, only a couple of years after its adoption, highlighting the difficulties in achieving lasting consensus in governance.
- **Implementation of Islamic Principles:** Although the constitution outlined Islamic provisions, the lack of practical enforcement mechanisms diminished their effectiveness, leaving many provisions ambiguous.

Conclusion

The **1956 Constitution of Pakistan** was a pivotal document that attempted to create a governance structure suitable for a diverse society while embedding Islamic principles within a democratic framework. Despite its ambitious goals, the challenges it faced underscored the complexities of nation-building in a newly independent state. The constitution's short lifespan reflected the ongoing struggles in achieving political stability and unity in Pakistan's multifaceted society.

The Fiasco of the 1956 Constitution of Pakistan

The **1956 Constitution of Pakistan** was initially seen as a significant step towards establishing a democratic framework in the newly independent nation. However, within just a few years, the constitutional experiment unraveled, leading to its abrogation in 1958. This analysis examines the key factors contributing to the failure of the 1956 Constitution and the broader political context of the time.

Key Challenges to the 1956 Constitution

1. Undue Interference by the President:

- The constitution was designed to create a parliamentary system where the President held nominal powers. However, President Iskandar Mirza's active involvement in politics undermined this framework. He manipulated the appointment of Prime Ministers and influenced political parties, effectively circumventing the parliamentary system's spirit. This interference eroded the separation of powers essential for a functional democracy.

2. Parity Between East and West Pakistan:

- The issue of representation between the two wings of Pakistan became contentious. East Pakistan, with 54% of the population, felt marginalized by the decision to grant equal representation in the central legislature. This parity arrangement failed to address broader concerns regarding equitable administration, economic resources, and financial distributions, leading to resentment in East Pakistan.

3. Demand for Maximum Provincial Autonomy:

- East Pakistan's call for greater provincial autonomy stemmed from feelings of disenfranchisement. The predominance of West Pakistanis in civil and military bureaucracy exacerbated this sentiment. Additionally, East Pakistan contributed

significantly to the national economy yet felt neglected in budgetary allocations. These grievances fueled calls for autonomy, further straining national unity.

4. **Absence of a Majority Party:**

- The Constituent Assembly that enacted the 1956 Constitution lacked a dominant political party. The disintegration of the **Muslim League**, which had been the leading party, left a fragmented political landscape. Without a clear majority, coalition governments struggled to make decisive policy choices, leading to instability and ineffective governance.

5. **Lack of Organization and Discipline:**

- Political parties in Pakistan at the time were characterized by internal disorganization and a lack of democratic principles. Personal interests often took precedence over party loyalty, with politicians frequently switching allegiances for personal gain. This culture of opportunism undermined the potential for coherent governance and accountability.

6. **Absence of Direct Elections:**

- The failure to hold direct elections for the National Legislature further alienated the political process from the electorate. Political parties, particularly the Muslim League, avoided elections due to their lack of confidence in winning popular support. This disconnect from the public fostered a political environment ripe for discontent and disenfranchisement.

Conclusion

The **1956 Constitution of Pakistan** ultimately failed to establish a stable political system due to a confluence of internal and external challenges. The undue influence of the President, the contentious issue of representation between East and West Pakistan, demands for provincial autonomy, and the absence of a cohesive political party structure created a volatile environment. The resulting political instability and lack of effective governance culminated in the imposition of martial law in 1958, highlighting the constitutional and leadership deficits of the era.

In retrospect, the events following the promulgation of the 1956 Constitution illustrate a critical juncture in Pakistan's political history. The failure to develop a robust political culture and constitutional governance not only led to immediate crises but also set a precedent for future political challenges, leaving a legacy of instability and discontent that has continued to affect Pakistan's trajectory.

. WEEK 8

- **An Analysis of the Constitutional Crisis in Pakistan (1958-1969)**

- **Background**
- The period between 1958 and 1969 was marked by significant political upheaval in Pakistan, culminating in the imposition of martial law and the eventual rise of military rule under General Ayub Khan. The crisis stemmed from a combination of political instability, ineffective governance, and a failure to establish a functioning parliamentary system following the promulgation of the 1956 Constitution.
- **The Role of Iskandar Mirza**
- Iskandar Mirza, initially the last Governor-General of Pakistan, became the first President following the adoption of the 1956 Constitution. He advocated for a "controlled democracy," believing that an executive appointed for a fixed term would be more stable than one dependent on a volatile parliamentary majority. His tenure was characterized by a heavy-handed approach to governance, manipulating the political landscape to consolidate power.
- **Failure of the Parliamentary System**
- The 1956 Constitution was intended to establish a parliamentary democracy. However, Pakistan lacked the essential prerequisites for such a system, including a politically aware electorate, a strong opposition, and an independent press. The legislature was unable to function autonomously, frequently dismissed by the President, who exercised considerable control over cabinet appointments. This led to frequent government changes and political instability.
- The political parties were poorly organized, and the decline of the Muslim League post-independence left a vacuum in leadership. The assassination of Liaquat Ali Khan further exacerbated the situation, leading to a period of intrigue and conspiracy among politicians. The constitution became a tool for political maneuvering rather than a framework for governance, leading to widespread disillusionment.
- **Economic and Social Unrest**
- By 1958, Pakistan faced significant economic challenges, including low foreign exchange reserves and rising liabilities. The government's inability to address these issues created a backdrop of frustration among the populace. The promise of elections remained unfulfilled, with President Mirza exploiting the constitution's weaknesses to maintain control and silence dissent.
- The political climate deteriorated as factions within the ruling party sought to exploit the chaos. Prominent politicians began to align themselves with the military, creating a dangerous precedent for military intervention in politics. The deteriorating law and order situation further prompted the army's involvement in governance.
- **Abrogation of the 1956 Constitution**
- On October 7, 1958, Iskandar Mirza abrogated the 1956 Constitution, dissolving the central and provincial assemblies, banning political parties, and imposing martial law. He justified these actions by labeling the constitution as unworkable and filled with dangerous compromises that threatened national unity. Mirza's declaration marked a significant turning point, effectively ending the democratic experiment initiated by the 1956 Constitution.
- **The Rise of Ayub Khan**
- Following the imposition of martial law, General Ayub Khan was appointed as the Chief Martial Law Administrator. Mirza's attempt to maintain control by balancing power

dynamics with Ayub Khan failed; within weeks, Ayub Khan ousted Mirza, consolidating his authority. This marked the transition from civilian to military rule in Pakistan.

- Ayub Khan sought to legitimize his rule by proposing a new constitution, which he framed as a necessary response to the failures of the previous system. He initiated a referendum among the Basic Democrats to establish support for his new presidential system, thus sidelining traditional political parties.
- **Conclusion**
- The constitutional crisis in Pakistan from 1958 to 1969 illustrates the fragility of democratic institutions in the face of political ambition and instability. Iskandar Mirza's manipulation of the political landscape, combined with a lack of preparedness for a parliamentary system, created an environment ripe for military intervention. The subsequent rise of Ayub Khan marked a significant departure from the democratic ideals envisaged in the 1956 Constitution, setting a precedent for future military involvement in Pakistan's politics.
- The events of this period underscore the critical importance of strong political institutions, civic engagement, and the rule of law in sustaining democracy. The failure to establish these foundations during the early years of independence had lasting repercussions, shaping the trajectory of Pakistan's political landscape for decades to come.

Background and Martial Law (1958)

- **Martial Law Imposition:** On October 7, 1958, President Iskandar Mirza imposed martial law due to constitutional violations, leading to chaos in legal institutions.
- **Laws (Continuance in Force) Order:** Introduced on October 10, 1958, to validate laws supporting martial law, restoring powers of High Courts and the Supreme Court but granting immunity to the military's actions.
- **Supreme Court's Ruling:** Chief Justice Munir upheld martial law, legitimizing it hastily, which limited citizens' rights and judicial oversight.

Constitutional Development Reversal

- **Judicial Manipulation:** The Supreme Court's rulings (Dosso and Tamizuddin Khan cases) reversed constitutional progress, allowing military rule to persist.
- **Justification of Martial Law:** Chief Justice Munir incorrectly likened the coup to a revolution, arguing courts couldn't issue enforceable writs against it.

Ayub Khan's Objectives

- **Consolidation of Power:** Ayub Khan aimed to weaken popular support and establish a dictatorial regime, culminating in the 1962 Constitution.
- **Constitution Commission (1960):** Formed to draft a new constitution; the commission aimed to address the failure of the 1956 Constitution and suggest reforms.

Recommendations of the Constitution Commission

- **Presidential System:** Suggested a presidential form of government with a federal structure and bicameral legislature at the national level.
- **Electoral Process:** Proposed a restricted franchise based on property and literacy qualifications, intending to control the electorate.
- **Basic Democracies:** The commission recommended retaining Basic Democrats for elections, enabling Ayub Khan to maintain power.

1962 Constitution

- **Promulgation:** Enacted on June 8, 1962, it contained 250 articles, creating a powerful presidency.
- **Key Features:**
 - **Unicameral Legislature:** National Assembly with 156 members, equal representation from East and West Pakistan.
 - **Presidential Powers:** The President held significant authority, including appointing military chiefs, legislative veto, and emergency powers.
 - **Basic Democracy System:** Indirect elections through Basic Democrats, originally 80,000 but later increased to 120,000.

Political Implications

- **Federal Nature:** The government was federal, with substantial powers reserved for the President and governors.
- **Islamic Clauses:** Included in the constitution but framed in a flexible manner, allowing amendments.
- **Judiciary Control:** The President had authority over judicial appointments and could remove judges.
- **Language Policy:** Urdu and Bengali were national languages, with English for official business.

Conclusion

- The 1962 Constitution aimed to consolidate Ayub Khan's power, limiting genuine democratic processes and maintaining control over political institutions. The legacy of these actions contributed to ongoing political instability in Pakistan.

Main Features of the 1962 Constitution

Preamble

- Asserts that sovereignty belongs to God alone.
- Emphasizes Pakistan as a democratic state based on Islamic principles of social justice, equality, and tolerance.

- Recognizes the rights of non-Muslims and fundamental human rights.

Fundamental Rights

- Initially granted non-justifiable rights to citizens.
- Became justifiable with the first amendment in 1963, aligning with earlier provisions in the 1956 Constitution.

Presidential Powers

- Established a presidential form of government, with the President as both Head of State and Head of Executive.
- The President could be removed for gross misconduct or incapacity, requiring a three-quarters majority in the Assembly for removal.
- If the resolution for removal failed, the originators would lose their seats.

Legislature

- **National Assembly:** Consisted of 150 members, with equal representation from East and West Pakistan and six reserved seats for women.
- The Assembly was elected for a five-year term but could be dissolved early by the President under certain conditions.
- Legislation passed by the Assembly required Presidential assent, and the President had to respond within 30 days.

Federal Judiciary

- **Supreme Court:** Comprised a Chief Justice and other judges appointed by the President.
- The Supreme Court had appellate, advisory, and original jurisdiction over disputes between the central and provincial governments.
- Established a **Supreme Judicial Council** to handle complaints against judges, allowing the President to remove judges based on its recommendations.

Provincial Structure

- Each province had a Governor appointed by the President, serving as the executive head.
- **Provincial Assemblies:** Each consisted of 155 members, elected for five years, with the Governor able to dissolve the Assembly with Presidential consent.
- Legislative powers were divided between the Center and the Provinces.

Islamic Provisions

- The state was named the "Islamic Republic of Pakistan."

- Laws must conform to Islamic teachings, with provisions for Islamic advisory councils to guide legislation.

Election Process

- Indirect elections through an Electoral College of 80,000 Basic Democrats, responsible for local self-government.
- This structure led to misuse of power and funds, resulting in criticism of the government.

Centralization of Power

- The constitution created a centralized, authoritarian government rather than a truly federal one.
- The central government had extensive powers, including defense and external affairs, undermining provincial autonomy.

Political Consequences

- Dissatisfaction with the constitution and Ayub Khan's rule led to widespread protests in 1968.
- Demands included the resignation of Ayub Khan, abrogation of the 1962 Constitution, and restoration of a parliamentary system.
- In March 1969, amid increasing chaos, Ayub Khan resigned and handed power to General Yahya Khan, who declared martial law and abrogated the constitution.

Summary

The 1962 Constitution ultimately facilitated Ayub Khan's authoritarian regime, leading to significant public discontent and contributing to his resignation and the onset of martial law. The unresolved issues regarding provincial autonomy and representation persisted, reflecting ongoing political instability in Pakistan.

Conclusion Points

1. **Martial Law Dominance:** The period from 1958 to 1969 was characterized by martial law, primarily under General Ayub Khan.
2. **Dismissal of Suhrawardy:** Hussain Shaheed Suhrawardy's efforts to establish democracy were thwarted when Iskander Mirza dismissed him.
3. **Leadership Vacuum:** The deaths of key leaders, Muhammad Ali Jinnah and Liaquat Ali Khan, created a lack of trust in political leadership.
4. **Abrogation of 1956 Constitution:** The 1956 Constitution was abrogated, leading to the introduction of the 1962 Constitution.
5. **Concentration of Power:** The 1962 Constitution transformed Pakistan's government from parliamentary to a presidential system, concentrating power in the President's hands.
6. **Weakening of Institutions:** The President's extensive powers undermined the legislature and judiciary, facilitating military control.

7. **Economic Decline:** Worsening economic conditions contributed to public dissatisfaction with Ayub Khan's regime.
8. **Public Unrest:** By the late 1960s, widespread agitation called for Ayub Khan's resignation and a return to parliamentary governance.
9. **Provincial Autonomy Demands:** East Pakistan sought greater autonomy and representation based on population in the national legislature.
10. **End of Ayub's Rule:** Growing unrest forced Ayub Khan to resign, passing power to General Yahya Khan, who abrogated the 1962 Constitution and declared martial law on March 25, 1969.
11. **Legacy of Instability:** This period highlighted the fragility of democratic institutions and the challenges of governance in Pakistan, influencing future political developments.